

Warsaw, December 2, 2022

Decision

DKE.561.26.2021

Based on Article 105 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2021, item 735, as amended) in connection with Article 7 sections 1 and 2 and Article 60 of the Act of May 10, 2018, on the protection of personal data (Journal of Laws of 2019, item 1781), after conducting administrative proceedings regarding the imposition of an administrative monetary penalty on I. Sp. z o.o. based in W. at ul. (...), the President of the Personal Data Protection Office

dismisses the proceedings.

REASONING

Factual Background

In the proceedings conducted by the President of the Personal Data Protection Office (hereinafter referred to as "the President of UODO") under case number ZSPR.440.513.2019, initiated based on the complaint of Mr. Ł. M., residing in W. at ul. (...), by letter dated September 4, 2019, the President of UODO summoned I. Sp. z o.o. based in W. (hereinafter referred to as "the Company") to provide explanations in the matter, within 7 days from the date of delivery of the letter. Due to the Company's failure to receive this letter, it was assumed that it was delivered on September 25, 2019, by operation of law, based on Article 45 of the Code of Administrative Procedure in conjunction with Article 44 of the Code of Administrative Procedure (substitute delivery). The Company did not respond to the summons.

By letter dated April 14, 2021, the President of UODO again summoned the Company to provide explanations in the matter, within 7 days from the date of delivery of the letter. The letter was delivered on April 20, 2021. The letter contained a warning that failure to provide a comprehensive response to the summons could result in the imposition of an administrative monetary penalty on the Company based on Article 83 section 5 letter e of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (Journal of Laws of the EU L 119 of May 4, 2016, p. 1, with amendments published in Journal of Laws of the EU L 127 of May 23, 2018, p. 2, hereinafter referred to as "GDPR"). The Company also did not respond to this summons.

By letter dated June 10, 2021, the President of UODO once again summoned the Company to provide explanations in the matter, within 7 days from the date of delivery of the letter. The letter was delivered on June 14, 2021. The content of the letter again included a warning that failure to provide a comprehensive response to the summons could result in the imposition of an administrative monetary penalty on the Company based on Article 83 section 5 letter e of the GDPR. The Company again did not respond to the summons.

The aforementioned lack of response from the Company to the summonses from the President of UODO in the proceedings under case number ZSPR.440.513.2019 provided grounds for determining a violation of Article 58 section 1 letters a) and e) of the GDPR, consisting of the Company's failure, as a data controller, to fulfill the obligation to provide the President of UODO with information necessary for the performance of his tasks. In connection with the above, the President of UODO initiated the present proceedings under case number DKE.561.26.2021 regarding the imposition of an administrative monetary penalty on the Company. Information about the initiation of these proceedings was delivered to the Company on September 23, 2021.

By decision dated May 31, 2022, the President of UODO discontinued the proceedings in the matter of ZSPR.440.513.2019 (in which he summoned the Company to provide explanations) due to the contradiction of the complainant's requests, established during the proceedings, resulting in the matter being moot in the understanding of Article 105 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2021, item 735, as amended). After reviewing all the evidence collected in the case, the President of the Personal Data Protection Office considered the

following.

Legal Provisions

According to Article 57 section 1 letter a) of the GDPR, the President of UODO, as a supervisory authority within the meaning of Article 51 of the GDPR, monitors and enforces the application of this regulation within its territory. Within the scope of its powers, the President of UODO is authorized, among other things, to conduct proceedings regarding the application of the provisions of this legal act (Article 57 section 1 letter h) of the GDPR).

To enable the realization of the tasks thus defined, the President of UODO has a number of powers specified in Article 58 section 1 of the GDPR in the context of the conducted proceedings, including the power to order the controller and the processor to provide all information necessary for the performance of his tasks (Article 58 section 1 letter a) of the GDPR) and the power to obtain from the controller and the processor access to all personal data and all information necessary for the performance of his tasks (Article 58 section 1 letter e) of the GDPR).

A violation of the provisions of the GDPR, consisting of the failure of the controller or processor to provide access to the data and information referred to above, resulting in a violation of the rights of the authority specified in Article 58 section 1, is subject to an administrative monetary penalty of up to EUR 20,000,000, or in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount being applicable (Article 83 section... 5 lit. e) in fine GDPR).

Pursuant to Article 105 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2021, item 735, as amended, hereinafter referred to as "k.p.a."), when the proceedings have become entirely or partially moot for any reason, the public administration authority issues a decision to discontinue the proceedings accordingly in whole or in part. According to Article 60 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781, hereinafter referred to as "u.o.d.o."), the proceedings regarding violations of personal data protection regulations are conducted by the President of the UODO. Article 7 § 1 of the u.o.d.o. states that in matters not regulated by this Act, the provisions of the Code of Administrative Procedure apply to administrative proceedings before the President of the UODO (including proceedings regarding the imposition of an administrative monetary penalty referred to in Chapter 11 of the u.o.d.o.).

Legal Assessment

The present administrative proceedings regarding the imposition of an administrative monetary penalty on the Company for violating Article 58 § 1 lit. a) and e) of the GDPR, case no. DKE.561.26.2021, were initiated in connection with the failure to provide access to personal data and information necessary for the President of the UODO to perform his tasks in the proceedings ZSPR.440.513.2019. However, the proceedings under case no. ZSPR.440.513.2019 have been discontinued, as indicated in point 5 above. As a result of the discontinuation of the proceedings, the requests from the President of the UODO directed to the Company have become moot. Considering that the Company's response to the aforementioned requests is no longer required, there are no grounds for further conducting the present proceedings under case no. DKE.561.26.2021 regarding the imposition of an administrative monetary penalty on the Company for the lack of response to these requests. Therefore, the present proceedings have become moot.

According to the provision of Article 105 § 1 of the k.p.a., applied in administrative proceedings before the President of the UODO based on Article 7 § 1 of the u.o.d.o., in such a situation ("when the proceedings have become moot for any reason in whole or in part"), the administrative proceedings are subject to mandatory discontinuation. The premise for discontinuation of the proceedings may exist even before they are initiated, which will only be revealed in the ongoing proceedings, and it may also arise during the course of the proceedings, thus in a case already pending before the administrative authority (as was the case in the present matter). As indicated by the Supreme Administrative Court, "There can be no doubt that subsequent mootness of the proceedings occurs when, during the course of the proceedings, the premise determining the admissibility of its conduct, i.e., the existence of an

administrative matter that may be subject to substantive examination by the administrative authority, ceases to exist." Judgment of the NSA of June 22, 2022, II OSK 2797/19, LEX no. 3413675.

In this factual and legal state, the President of the UODO has decided as stated in the operative part.

Instruction

The decision is final. The party has the right to appeal the decision to the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of the UODO (address: ul. Stawki 2, 00 - 193 Warsaw). The fee for the appeal is 200 PLN. In the proceedings before the Provincial Administrative Court, the party has the right to apply for legal aid, which includes exemption from court fees and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. Legal aid may be granted upon the party's application submitted before the initiation of the proceedings or during the course of the proceedings. The application is exempt from court fees.

Print Article

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Department of Penalties and Enforcement

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Jan Nowak

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Mathias Proch

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Edyta Madziar

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